REAL ESTATE PURCHASE AND SALE AGREEMENT

THIS REAL ESTATE PURCHASE AND SALE AGREEMENT (this "Agreement") is entered into as of June ___, 2023 (the "Effective Date") by and between the Vancouver School District #37, a first-class school district in Clark County, Washington, commonly known as "Vancouver Public Schools" ("Seller" or "VPS"), and the City of Vancouver, a Washington municipal corporation ("Purchaser" or "City").

BACKGROUND

A. Seller owns approximately 0.15 acres of unimproved land located at 3000 F ST, VANCOUVER, WA 98663 with the Clark County Tax Parcel #16525000 and the abbreviated legal description VANCOUVER HEIGHTS #2 LOT 3 ALL LOT 4 BLK 29 (the "Property"), as more particularly described on the attached **Exhibit A**, incorporated herein by reference, and as depicted with the map shown on **Exhibit B**.

B. Purchaser desires to acquire the Property, which is located immediately adjacent to Shumway Park, a City of Vancouver Parks, Recreation & Cultural Services ("Vancouver Parks") neighborhood park, to expand park services in accordance with the Vancouver Parks' 2022 – 2032 Comprehensive Plan capital facilities plan.

C. Seller obtained an appraisal from Colliers International dated January 27, 2023 (Colliers File # VAN230005) of the Property conveying a final opinion of "As-Is Market Value" of $180,000.

D. Seller is a Washington public school district and Purchaser is a Washington municipality, therefore the disposal and acquisition of real property contemplated by this Agreement is made on such terms and conditions as mutually agreed upon by the parties in accordance with RCW 39.33.010.

NOW THEREFORE, in consideration of the circumstances recited above and the mutual covenants contained herein, the parties hereto agree as follows.

AGREEMENT

1. Purchase and Sale of the Property. Seller agrees to sell the Property, including all easements, rights, strips, rights-of- way, and any other rights or interests appurtenant thereto, to Purchaser, and Purchaser agrees to purchase the Property from Seller, on the terms and conditions set forth in this Agreement. The Property consists of Seller's interest in:

2. Purchase Price. The total purchase price for the Property is $180,000 (the "Purchase Price").

3. Earnest Money Deposit. Within five (5) business days of the Effective Date, Purchaser will deliver to Fidelity National Title Company/Chicago Title Company of Washington, 655 West Columbia Way, Suite 200, Vancouver, Washington, 98660, ATTN: Melissa Miller, Escrow Agent

("Title Company") earnest money in the amount of Four Thousand Five Hundred and No One Hundredths Dollars ($4,500) (the "Deposit"). Except as provided herein, the Deposit is nonrefundable and shall be applied to payment of the Purchase Price at Closing.

4. Payment of Purchase Price. The Purchase Price shall be paid as follows:

4.1 The Deposit will be credited to the Purchase Price.

4.2 The balance of the Purchase Price will be paid in all cash at Closing.

5. Inspection Contingency. At the time of execution of this Agreement, Purchaser has completed its inspections of the Property.

6. Title to the Property. Within five (5) days after the Effective Date, Seller will order a preliminary title commitment from the Title Company with respect to the Property (the "Title Report"). The Title Report includes and must be accompanied by the most legible copies available of all special exceptions listed therein. Except for any mortgages, deeds of trust, security instruments, financing statements, or other instruments which evidence or secure indebtedness, judgments, and liens against the Property, including, without limitation, mechanics' liens, tax liens, real estate taxes, water rates, and sewer rents, any exceptions to the Title Report to which Purchaser does not object within twenty (20) days of issuance of the Title Report pursuant to this Agreement shall be considered permitted exceptions.

7. Conditions to Closing. The obligation of the Parties to close this transaction is conditioned on the following:

(a) *Title Insurance*. The Title Company must be ready, willing, and able to issue a standard owner's policy of title insurance in the amount of the Purchase Price, based on the Title Report, insuring title in Purchaser to the Property consistent with the terms of this Agreement, and subject only to the title exceptions approved or deemed approved by Purchaser.

(b) *City and VPS Approval*. The Vancouver Parks and Recreation Advisory Commission (commonly known as PRAC) shall have reviewed and recommended and the Vancouver City Council and the Board of Directors of the Vancouver School District #37 shall have each respectively approved this Agreement and authorized the transaction contemplated herein by the City and VPS at open public meetings.

If any of these conditions are not satisfied or waived by the Party benefitted by the condition, this Agreement will terminate without further obligation of either Party and the Deposit must be returned to Purchaser.

8. Closing.

8.1 *Closing Date.* This transaction will be closed within fifteen (15) business days following the satisfaction or waiver of all of the conditions set forth in Section 7 (the "Closing"), unless the Parties mutually agree to change the Closing date.

8.2 *Manner and Place of Closing.* This transaction will be Closed by the Title Company in Vancouver, Washington, or at such other place as the Parties may mutually agree to in writing. Closing will take place in the manner and in accordance with the provisions set forth in this Agreement.

8.3 *Prorations, Adjustments.*

(a) Any ad valorem real property taxes, assessments, or utility expenses (collectively, the "Expenses") will be prorated and adjusted between the Parties as of the Closing.

(b) Purchaser and Seller shall be equally responsible for the escrow fees in connection with this sale. Seller must pay the excise transfer tax on the sale, if any.

(c) Seller must pay the premium for a standard owner's title insurance policy in favor of Purchaser in the amount of the purchase price. Any additional title insurance coverage or endorsements requested by Purchaser will be paid by Purchaser.

(d) Purchaser shall be responsible for document recording fees at Closing.

(e) Each Party will pay its own attorney fees.

8.4 *Events of Closing.* If the Title Company has received the sums and is in a position to cause the title insurance policy to be issued as described below, this transaction will be fulfilled as follows:

(a) Seller will convey the real property to Purchaser by statutory warranty deed, the form of which is included on the attached **Exhibit C** (the "Deed"), subject to the matters accepted or deemed accepted by Purchaser under this Agreement and shown thereon as "Permitted Encumbrances."

(b) The Title Company will calculate the pro-rations agreed to in this Agreement, and the Parties will be charged and credited accordingly.

(c) Upon compliance with the Parties' closing instructions, the Title Company will record the Deed.

8.5 *Title Insurance.* As soon as possible after the Closing Date, the Title Company will furnish Purchaser a standard form ALTA owner's policy of title insurance in the amount of the Purchase Price for the Property, subject only to the Title Company's standard preprinted exceptions and exclusions for the form and except for the matters accepted or

deemed accepted by Purchaser under this Agreement. Purchaser may elect, at Purchaser's sole cost and expense, to secure an ALTA expanded coverage policy or ALTA endorsements, as approved by the Title Company.

8.6 *Possession.* Seller will deliver possession of the Property to Purchaser at Closing.

9. Defaults and Failure to Close.

9.1 *Seller's Remedies.* In the event that this transaction fails to close on account of a default by Purchaser under this Agreement, the Deposit will be forfeited by Purchaser and retained by Seller as liquidated damages as Seller's sole remedy for the default. THE AMOUNT OF THE DEPOSIT HAS BEEN AGREED BY THE PARTIES TO BE REASONABLE COMPENSATION AND THE EXCLUSIVE REMEDY FOR PURCHASER'S DEFAULT, BECAUSE THE PRECISE AMOUNT OF SUCH COMPENSATION WOULD BE DIFFICULT TO DETERMINE.

9.2 *Purchaser's Remedies.* If this transaction fails to close on account of a default by Seller under this Agreement, the parties hereto agree that Purchaser would be irreparably injured by Seller's breach of this Agreement and that money damages alone are an inadequate remedy for actual or threatened breach of this Agreement. Accordingly, Purchaser is entitled to specific performance or injunctive or other equitable relief to enforce this Agreement and to all other rights and remedies available at law or in equity to Purchaser, including return of the Deposit.

9.3 *Defaults.* Except for (a) Purchaser's failure to pay any portion of the Deposit as and when due hereunder or (b) either Party's wrongful failure to close or satisfy a condition to closing by the required Closing Date, neither Party will be deemed in default under this Agreement unless the Party is given written notice of its failure to comply with this Agreement and the failure continues for a period of ten days after the date the notice is given. This section will not be construed as extending the time by which any notice or contingency waiver must be given.

9.4 *Costs and Attorney Fees*. If suit, action, arbitration, or mediation is instituted to interpret or enforce the terms of this Agreement or with respect to any dispute under this Agreement, the prevailing Party is entitled to recover from the other Party the sum that the court, arbitrator, or mediator may adjudge reasonable as costs and expert witness and attorney fees in any such proceeding, at trial, on any appeal or petition for review, and in any bankruptcy proceeding (including the adjudication of any issues peculiar to bankruptcy law), in addition to all other sums provided by law.

9.5 *Waiver of Jury Trial.* AS PART OF THE CONSIDERATION FOR THIS AGREEMENT, EACH OF THE PARTIES HERETO WAIVES THE RIGHT TO TRIAL BY JURY IN CONNECTION WITH ANY DISPUTE OR ACTION UNDER THIS AGREEMENT.

10. Legal Relationship.

10.1 *Relationship of Parties.* This Agreement creates only the relationship of Seller and Purchaser, and no joint venture, partnership, or other joint undertaking is intended hereby. Neither Party hereto will have any rights to make any representations or incur any obligations on behalf of the other. Neither Party has authorized any agent to make any representations, admit any liability, or undertake any obligation on its behalf. Neither Party is executing this Agreement on behalf of an undisclosed principal.

10.2 *No Third-Party Beneficiaries.* No third party is intended to be benefited or afforded any legal rights under or by virtue of this Agreement.

10.3 *Assignments and Successors.* Purchaser may not assign or otherwise transfer this Agreement or any interest herein, voluntarily, involuntarily, or by operation of law, without the prior written consent of Seller in each instance.

11. General Provisions.

11.1 *Notices.* Notices under this Agreement must be in writing and, if personally delivered or sent by electronic mail, will be effective when received. If mailed, a notice will be deemed effective on the second day after deposited as registered or certified mail, postage prepaid, directed to the other Party. Notices must be delivered, mailed, or sent electronically to the following addresses and email addresses:

Purchaser: Vancouver School District #37
ATTN: AJ Panter, Executive Director, Facility Support Services
2901 Falk Road
Vancouver, WA 98661

With copy to: Marilee Scarbrough, General Counsel
Vancouver Public Schools
PO Box 8937
Vancouver, WA 98668-8937
Tel: 360-313-1280

Seller: City of Vancouver
ATTN: Monica Tubberville, Parks, Recreation, & Cultural Services
PO Box 1995
Vancouver, WA 98660

With a copy to: City of Vancouver
ATTN: Becky Rude, Assistant City Attorney
PO Box 1995
Vancouver, WA 98660

Either Party may change its address for notices by at least fifteen (15) days' advance written notice to the other.

11.2 *Time of Essence.* Except as otherwise specifically provided in this Agreement, time is of the essence for each and every provision of this Agreement.

11.3 *Invalidity of Provisions.* If any provision of this Agreement, or any instrument to be delivered by a Party at Closing under this Agreement, is declared invalid or is unenforceable for any reason, the provision will be deleted from the document and will not invalidate any other provision contained in the document.

11.4 *Neutral Construction.* This Agreement has been negotiated with each Party having the opportunity to consult with legal counsel and will be construed without regard to which Party drafted all or part of this Agreement.

11.5 *Captions.* The captions of the sections and paragraphs in this Agreement are used solely for convenience and are not intended to limit or otherwise modify the provisions of this Agreement.

11.6 *Waiver.* The failure of either Party at any time to require performance of any provision of this Agreement will not limit the Party's right to enforce the provision. Waiver of any breach of any provision will not be a waiver of any succeeding breach of the provision or a waiver of the provision itself or any other provision.

11.7 *Subsequent Modifications.* This Agreement and any of its terms may be changed, waived, discharged, or terminated only by a written instrument signed by the Party against whom enforcement of the change, waiver, discharge, or termination is sought.

11.8 *Saturdays, Sundays, and Legal Holidays.* If the time for performance of any of the terms, conditions, and provisions hereof falls on a Saturday, Sunday, or legal holiday, then the time of the performance will be extended to the next business day thereafter.

11.9 *Venue.* In any action brought to interpret or enforce any of the provisions of this Agreement, the venue will be in Clark County, Washington.

11.10 *Applicable Law.* This Agreement will be construed, applied, and enforced in accordance with the laws of the state of Washington. All sums referred to in this Agreement will be calculated by and payable in the lawful currency of the United States.

11.11 *Entire Agreement.* This Agreement constitutes the entire agreement of the Parties with respect to the Property and supersedes and replaces all written and oral agreements previously made or existing between the Parties.

11.12 *No Offer.* By providing an unexecuted copy of this Agreement to any person, neither Party is deemed to have made an offer to sell or purchase or otherwise indicated its willingness to enter into any transaction with respect to the Property, and this Agreement will not be binding on any Party unless and until it has been fully executed and delivered by Seller and Purchaser.

11.13 *Counterparts.* This Agreement may be executed simultaneously or in counterparts, each of which will be deemed an original, but all of which together will constitute one and the same contract.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed as of the Effective Date.

SELLER:

VANCOUVER SCHOOL DISTRICT #37, a Washington first-class school district

By:_____

Name:_____

Title:_____

Approved as to Form:

By:_____

Name:_____

Title:_____

PURCHASER:

CITY OF VANCOUVER, a Washington municipal corporation

By:_____
By: Eric J. Holmes, City Manager (or designee)

Attest:

By:_____
By: Natasha Ramras, City Clerk (or designee)

Approved as to Form:

By:_____

By: Jonathan Young, City Attorney (or designee)

EXHIBIT A

PROPERTY LEGAL DESCRIPTION

The South 60 feet of Fractional Block 29, Vancouver Heights, according to the Plat thereof, recorded in Volume "A" of Plats, Page 35, Records of Clark County, Washington, otherwise described as Lot 4 and the South 10 feet of Lot 3, Block 29 of said Vancouver Heights. Together with that portion of "F" Street adjacent and appurtenant thereto vacated by order of the Clark County Board of Commissioners, dated June 7, 1905 , and recorded in Book 60, Page 248, records of Clark County, Washington.

EXHIBIT B

MAP OF PROPERTY

Subject Property

EXHIBIT C

FORM OF STATUTORY WARRANTY DEED

After recordation return to:

City of Vancouver
PO Box 1995
Vancouver, WA 98668
ATTN: Monica Tubberville, Parks, Recreation, and Cultural Services

STATUTORY WARRANTY DEED

GRANTOR: VANCOUVER SCHOOL DISTRICT #37, a Washington first-class school district

GRANTEE: CITY OF VANCOUVER, a Washington municipal corporation

PROPERTY: 3000 F ST, VANCOUVER, WA 98663
(Full legal description on Exhibit A, attached hereto)

ABBREVIATED LEGAL: VANCOUVER HEIGHTS #2 LOT 3 ALL LOT 4 BLK 29

ASSESSOR'S TAX PARCEL NUMBER: #16525000

The Grantor, VANCOUVER SCHOOL DISTRICT #37, a Washington first-class school district, for and in consideration of Ten and No One Hundredths Dollars ($10.00) and other good and valuable consideration, in hand paid, conveys and warrants to the Grantee, the CITY OF VANCOUVER, a Washington municipal corporation, the real property situated in the County of Clark, State of Washington as described on the attached Exhibit A and subject to the permitted exceptions, if any, described on attached Exhibit B, together will all improvements located thereon, all rights, benefits, privileges, easements, tenements, hereditaments and appurtenances there unto belonging or in any way pertaining thereto.

Dated this _____ day of _____, 2023.

GRANTOR:

VANCOUVER SCHOOL DISTRICT #37, a Washington first-class school district

By: [DO NOT SIGN – EXHIBIT ONLY]_____

Name:_____

Title:_____

NOTARY ACKNOWLEDGMENT

STATE OF WASHINGTON }
}ss.
COUNTY OF CLARK }

Before me personally appeared _____ (print name) as the authorized signatory of Vancouver School District # 37, GRANTOR, and acknowledged said instrument to be the free and voluntary act and deed of said individual, for the uses and purposes therein mentioned, and on oath stated that he was the individual authorized signatory of said instrument as Grantor.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal this ____ day of _____, 2023.

Signature:_____

Name (Print):_____

NOTARY PUBLIC in and for
the State of _____,
residing at_____

My appointment expires:_____

STATUTORY WARRANTY DEED

EXHIBIT A

LEGAL DESCRIPTION

The South 60 feet of Fractional Block 29, Vancouver Heights, according to the Plat thereof, recorded in Volume "A" of Plats, Page 35, Records of Clark County, Washington, otherwise described as Lot 4 and the South 10 feet of Lot 3, Block 29 of said Vancouver Heights. Together with that portion of "F" Street adjacent and appurtenant thereto vacated by order of the Clark County Board of Commissioners, dated June 7, 1905 , and recorded in Book 60, Page 248, records of Clark County, Washington.

STATUTORY WARRANTY DEED

EXHIBIT B

PERMITTED ENCUMBRANCES

[SUBJECT TO TITLE REPORT REVIEW]